Notification Waiver Determination

Coles – Leasehold interest in shopping centre on Capricorn Highway, Emerald, QLD

Acquisition	Coles Supermarkets Australia Pty Ltd (**CSA**), a subsidiary of Coles Group Limited (**Coles**), applied for a notification waiver in respect of CSA's proposed acquisition of a leasehold interest at Lot 3 & 4, Capricorn Highway, Emerald QLD 4720 from Boulder Capital Investments Pty Ltd, as described in the transaction documents provided as part of the application (the **Acquisition**).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the *Competition and Consumer Act 2010* (Cth) that the Acquisition is not required to be notified.
Date of determination	1 May 2026

Parties to the Acquisition	Coles is an Australian public company (ASX: COL) that primarily operates: • supermarkets nationwide, through CSA, and • retail liquor stores nationwide, trading under the Liquorland, Liquorland Warehouse and Liquorland Cellars brands. The lessor, Boulder Capital Investments Pty Ltd, is an Australian private investment company focused on providing debt and equity into property developments and real estate assets. The land subject to the proposed lease is located in Emerald, QLD. It is the proposed site of a new shopping centre comprising of a Coles supermarket of 2,808 sqm SFA, a 6-bay Click & Collect drive through, home delivery facilities, 1,200 m^2 speciality retail and car parking. The leasehold interest would be an input to Coles' supermarket retailing operations.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the **ACCC**) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the *Competition and Consumer Act 2010* (Cth) (the **Act**). Based on the information currently before it, including Coles' confirmation to the ACCC that it will not operate both supermarkets on an ongoing basis and the existing store will close as part of the transition to the replacement store, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. the new Coles supermarket will replace Coles' existing supermarket, and it will not result in an additional Coles supermarket, in Emerald, QLD

	b. the target land is not currently used for grocery retailing and Coles' proposed new supermarket in Emerald will be used to improve the quality of Coles' offering in Emerald c. there are alternative grocery retailers, including Woolworths and IGA, in the local area. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds determined under section 51ABP(1) being met. The ACCC does however observe that the targeted notification requirements for supermarkets determined under section 51ABQ(1) are likely to apply. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act